

AI and Law: "Digital Humanism Becomes Concrete Only with Rules" Speaks Ginevra Cerrina Feroni, Vice President of the Privacy Authority

From the speech by Ginevra Cerrina Feroni, Vice President of the Italian Data Protection Authority, at the conference "Artificial Intelligence and Automated Decisions," January 22, 2024, University of Florence (www.thedotcultura.it, January 24, 2024)

Artificial Intelligence and the Legal Framework, or; is it possible to regulate at a legal level one of the phenomena that can rightly be defined as epochal, destined for some to forever change the course of human history? The answer is not simple yet necessary, as emerged from the conference held yesterday, January 22, "Artificial Intelligence and Automated Decisions," at the University of Florence. The framework of the day is provided by Professor Erik Longo, organizer and moderator of the first morning session. The initiative took place in the Aula Magna of the Rectorate, in Florence, in Piazza San Marco.

Professor Longo, who is also responsible for the University of Florence's ARC II project that deals with compliance issues related to the GDPR (General Data Protection Regulation), particularly for small and medium-sized enterprises, outlines the general situation: "The reflection starts from the theme of automated decisions and particularly the role that AI plays in assisting our daily actions, from work to the activities of Public Administrations and in enterprises. Artificial Intelligence is today one of the key words of contemporaneity. We are aware that there are many benefits, but also many risks." And this is the foundational theme of the meeting: can risks be limited? And how? Initially, as Longo explains, it is certainly essential to have awareness in the use and approach to these machines; but at the same time, an "ecosystem of effective and efficient rules" is necessary.

Rules that essentially aim to protect one of the most, in fact, evanescent goods from a digital perspective, of contemporaneity, namely the right to privacy. A theme that has exploded thanks to the contribution of the Italian Authority, as Vice President Ginevra Cerrina Feroni recalls: "We are currently awaiting the entry into force of the new European regulation on artificial intelligence, which introduces a series of highly significant coordinates, distinguishing prohibited treatments, which are absolutely contrary because they violate freedoms and fundamental rights, high and medium-risk treatments, and permitted treatments. However, this regulation has not yet come into force, so the legislation on the protection of personal data applies, which is what the Authority has been applying for years. Therefore, even before the regulation comes out, there are already existing norms, since automated treatments must, with artificial intelligences and algorithms, meet certain requirements." And also answer certain questions: who keeps the data that is collected? How are they processed? For how long are they kept? With whom are they shared? What are the rights of citizens regarding ownership?

Questions that could be replicated for almost every application of AI, and which help understand why, from a previously unknown topic to most, it has exploded in recent months, perhaps also thanks to the contribution that the Italian Authority has provided on the subject. "ChatGPT entered the Italian market in November 2022 – recalls Cerrina Feroni in her speech – its potential was immediately evidently enormous, as were the risks. The intervention of the Authority, the first authority in the world to intervene with a temporary limitation measure, pending the first clarifications on the system's compliance with the principles of the European regulation. That measure opened a debate that immediately transcended national borders. A debate that immediately saw an absolute dominance of critics, enthusiastic about the technology that, it was said, could not be stopped and any regulatory intervention was labeled as anti-historical."

However, shortly thereafter, some critical voices began to emerge, some doubts were raised, prompted by the "first outputs of queries made to ChatGPT, completely fanciful and erroneous responses, which can also cause serious damage to people's reputations, but the 'copyright issue, the loss of jobs in Hollywood, the protests of screenwriters,' and so on also emerged. European authorities turned to the Italian Authority asking for clarifications and opened a European task force that is working, investigations began in the USA (New York Times), and the rest is history. The major issue that Italy puts on the table is therefore the regulation of the enormous impact that AI produces in all

fields of what we might define as traditional systems.

Legal or ethical regulation, the first major question. "I have some reservations about the predominance of the ethical theme in the approach to the concept of artificial intelligence," says the Vice President, "because I believe it becomes very convenient to hide behind ethical standards that are very appealing to large companies, soft law, codes of conduct that can become everything and nothing, also an alibi to continue doing business without responsibility. It is much less convenient to think about legal rules that carry sanctions. Therefore, we need law calibrated to the pillars of democratic systems, the heart of constitutionalism, separation of powers, rights, and fundamental freedoms. These are our guiding stars and the

****Our Paths, Because AI Deals Exactly with This, with the Pillars of a Democratic System. The Role of Authorities is Exactly This: Protection of the Rights of Individuals Who May Be at Risk from Unregulated Artificial Intelligence Systems.****

"The human at the center, digital humanism, are important words," explains Cerrina Feroni, "words that need to be articulated in concrete terms; otherwise, they remain labels. The definition of 'human at the center' is not rhetoric; it reflects the activity of the Privacy Authority in recent years on this issue of AI. It is the perspective derived from the jurisprudence of the Authority over these years."

An activity that began to move even before the European Regulation on Personal Data Protection came into force.

Some particularly interesting cases reveal the impact of AI, particularly generative AI, in our world. Cases that "have allowed us to outline directions on this major topic. There is already jurisprudence, both for the public and private sectors. The major issue in the public sector is tax evasion. As early as 2013, we had automated systems capable of processing vast amounts of data. The 2013 decision of the Authority regarding the Redditoometro, an automated tool used to analyze personal data contained in the tax registry, aimed to identify taxpayers to be subjected to audits to reassess their actual income. It was already a very advanced profiling system of the taxpayer, who, if deemed suspicious, could face consequences. The Authority's opinion was favorable but expressed a series of conditions and guarantees for the use of the tool: transparency, the right to contest the algorithm's decision."

In this regard, the Authority has accompanied the measures of each government, trying to "balance the fight against tax evasion with the protection of taxpayers." This has occurred through continuous dialogue between the Revenue Agency and the Authority (which took office in 2019), leading to the use of tools compliant with the balance between the need to combat evasion and the need to protect personal data. Another huge topic is healthcare, "where the impact of AI is disruptive, with the pandemic acting as an extraordinary accelerator. Few sectors have experienced such significant and anticipated digitalization. The Authority is trying to oversee (there are numerous measures) the function of anti-COVID measures that involved the use of technologies with continuous verification and protection of freedom rights. I recall the Immuni app, which was perhaps one of the largest AI algorithm tools for tracking, where the authority provided a series of indications to the producing company that were complied with. The system did not work, but not due to privacy issues, but because the local health authorities were unable to manage the enormous volume of data that was acquired."

Not only that. AI is now, as is known, also used to make strategic decisions. "In 2020," recalls the Vice President, "we issued an opinion for the Council of State on the distribution of funds from the national health fund among the regions. The government wanted to shift from a model based on the age of the population to one based on the actual economic needs of the territory. However, the transition to the new model required profiling the health status of each individual beneficiary of the National Health Service, allowing the Ministry to make many public databases interoperable to trace the individual health profile of each user, linking it to their income and social status. This was no small matter." The Authority's opinion was negative, as "it was deemed that there was a lack of a legal basis to achieve the fundamental principles: transparency of automated decision-making processes, non-exclusivity of algorithmic decisions, and non-algorithmic discrimination."

Principles that today have been incorporated into a ten-point guideline developed by the Authority.

Two emblematic cases, which resonate in the rationale of other sectors, from social (for example, how subsidies, grants, etc., are distributed) to the very delicate issue of Public Safety, including the topic of facial recognition for public safety, is one of the “most critical uses of artificial intelligence systems, subject to significant discussion at the European level.”

“We adopted a very significant measure, in fact a negative opinion on the so-called SARI-Real time system. It is a system that could have allowed, through video camera recordings, the analysis of citizens' faces by comparing them in real time with a database of 10,000 portraits, to implement facial recognition with a specific algorithm. This would have created an alert for agents. The problem was that with this large system (essentially a mass surveillance system), it would also intercept individuals who might be in the square to legitimately demonstrate, such as students in a march.”

Diving into the private sector, a huge topic, as private entities have been extensively using algorithms and artificial intelligence for years. “I recall the issue of work, on which I can say we are proud of the measures taken between 2020 and 2021 against Deliveroo Italia, specifically regarding the riders. The platform processed the personal data of 8,000 riders for the assignment of work shifts, analyzing how the riders performed their work with tracking every 12 seconds, with all the routes taken being stored for months. Excessive processing, perhaps not even justified concerning the purpose, in total unawareness.”

of the riders themselves. The algorithm determined discriminations against riders considered less reliable, without taking into account the reasons why they did not arrive for that delivery, perhaps because they received an emergency call from family, or they fell ill, or they had an accident, as unfortunately happened in Florence, where a young rider was dismissed after being killed in an accident.”

There are many themes (just think of education during COVID), but the last and perhaps the most disturbing is that of generative intelligence, which does not stop at ChatGPT. “We have taken significant measures against Clear View AI, a search engine that enables facial recognition using web scraping techniques, where 10,000 images were collected, and thus it is possible with simple matching systems to identify individuals, with data linked to geolocation, date of birth, etc.” Another important point is the intervention of the Authority on Replika, a chatbot that has the ability to create virtual people, “the best friend, the tailor-made friend, with very serious risks particularly for minors, the most vulnerable subjects.”

Finally, the other major theme is that of web reputation, although the Authority, as Cerrina Feroni recalls, has tried to stem the continuous requests for the creation of reputational databases over the years. “It is very difficult to make predictions about future prospects,” concludes the Vice President of the Privacy Authority, “an emerging trend today is the massive use of web scraping techniques that all holders of artificial intelligence resort to in order to extract data available on the web, with the aim of training their proprietary algorithms. With very serious privacy implications, from intellectual property, fake data, simply the simplification for launching cyber attacks. What is certain is that the distinction between personal data and non-personal data is becoming increasingly blurred, as it is easier to trace the identity of the individual, and one cannot disregard the protection of personal data. I cannot concretely assess whether the Privacy Authority will be recognized formal roles of national governance. At the moment, it does not seem to me that the debate, at least in Italy, proposes clear outcomes; however, it seems to me that a potential complete embedding of AI management within the government, either directly or through agencies, could present some problematic aspects.” Artificial intelligence, as already emphasized, “is related to the integrity of democratic systems.”